

paid. “The crucial factor in determining whether a corporate acquisition constitutes either a de facto merger or a mere continuation is the same: whether adequate cash consideration was paid for the predecessor corporation’s assets.” (*Franklin v. Usx Corp.* (2001) 87 Cal.App.4th 615, 625.)

The de facto merger “exception has been invoked where on corporation takes all of another’s assets without providing any consideration that could be made available to meet claims of the other’s creditors.” (*Ray v. Alad Corp.* (1977) 19 Cal.3d 22, 28.) That is what occurred here. The Vaxanix Parties attempted to structure the transaction such that Curia would be effectively unable to collect the judgment it has against BryoLogyx.

Conclusion

Curia’s motion to amend the judgment to add Vaxanix Bio Ltd. and Vaxanix Bio Acquisition Corp. II to the Judgment entered on May 27, 2024, is **GRANTED**.

17. 9:00 AM CASE NUMBER: N25-2378
CASE NAME: CLAIM OF:RYAN RENN
***HEARING ON MINOR'S COMPROMISE**
FILED BY: RENN, RANDALL
TENTATIVE RULING:

Petitioner Randall Renn (“Petitioner”) filed a petition for approval of compromise of minor’s claims on December 5, 2025 (the “Minor’s Compromise”) seeking court approval of the compromise and proposed disposition set forth therein relating to the minor claimant Ryan Renn (the “Minor”). See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor’s Compromise was set for hearing on April 27, 2026. An amended petition was filed on January 15, 2026.

Analysis

The Minor’s Compromise is unopposed. The Court has considered the verified Minor’s Compromise and supporting declaration as amended. While the Court is inclined to find the proposed terms to be just and reasonable, it does not appear that Petitioner has been appointed guardian ad litem herein as yet.

Disposition

The Court finds and rules as follows:

1. The PARTIES ARE ORDERED TO APPEAR. The Court will entertain any oral motion for appointment of Petitioner as guardian ad litem in connection with granting the relief sought. Appropriate forms of order should be brought to the hearing.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO FORM INTERROGATORIES SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.

19. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.

20. 9:01 AM CASE NUMBER: C23-02801
CASE NAME: MARIE MILLER VS. JOSHUA SHAPLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT JOSHUA SCOTT SHAPLAND'S**
FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET 1
FILED BY: MILLER, MARIE
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **August 3, 2026, 9:00 am in Department 34**. The Court shall issue a further order.